AREA Alberta Real Estate Association

Agreement Number

AGREEMENT TO REPRESENT BOTH LANDLORD AND TENANT

For use when the designated agent has representation agreements with the landlord and the tenant prior to an offer being made

(For Use in Designated Agency Brokerages)

Between

THE BROKERAGE (WE)	and	**THE LANDLORD (YOU)**	and	**THE TENANT (YOU)**

1. THE PROPERTY

1.1 The land and buildings at (municipal address): _____

_____

Legal Description

Plan:	Block:	Lot:	Zoning:

Condominium:

Plan:	Unit Number:

Rural:

W. of Meridian	Range:	Township:	Section:

2. OUR AGENCY RELATIONSHIP

2.1 This agreement is for situations where a designated agent represents both the tenant and the landlord in the lease of this property only.

2.2 You each acknowledge you understand the limited agency responsibilities.

2.3 The designated agent's responsibilities are only limited for this potential transaction. If the transaction does not proceed, the designated agent's responsibilities continue to be those set out in your respective representation agreements.

3. THE DESIGNATED AGENT'S RESPONSIBILITIES

3.1 The designated agent must:

(a) be impartial in their dealings with you both.
(b) exercise reasonable care and skill in carrying out their duties.
(c) obey your lawful instructions as far as they are consistent with this agreement.
(d) comply with the *Real Estate Act* and its regulations and the rules and bylaws of the Real Estate Council of Alberta.
(e) not act in a way that benefits one of you at the expense of the other.
(f) give you a copy of this agreement as soon as possible after signing.

4. THE DESIGNATED AGENT'S RESPONSIBILITIES ABOUT INFORMATION

4.1 The designated agent must:

(a) act honestly.
(b) present all offers and counter-offers to and from each of you, even when you have accepted another offer to lease.
(c) pass on all information to you that the other side wants you to know.
(d) keep you informed of progress.
(e) tell you what information they've given to the other side.
(f) tell you all information they receive while this agreement is in effect especially:
  (i) to the tenant, all material latent defects affecting the property.
  (ii) to the landlord, all material facts about the tenant's ability to lease the property.

but they cannot provide you the information described in clause 4.2.

4.2 The designated agent agrees not to tell either of you without the informed written consent of the other:

(a) that the other side may be prepared to move on the lease rate or to offer more favourable terms.
(b) the other side's reasons for leasing the property.
(c) personal and confidential information about the other.

5. OUR FACILITATION SERVICES

5.1 We will:

(a) make sure the designated agent that helps you meets our applicable policies and procedures and treats you both impartially.
(b) supervise the designated agent and support staff to make sure they properly carry out their responsibilities under this agreement.
(c) hold money we receive in trust, as the *Real Estate Act* requires.

5.2 As part of our services, the designated agent will:

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(a) help you negotiate an agreement.
(b) give you property statistics and information, including comparative information from listing services and local databases.
(c) give you and prepare offers to lease and other relevant documents according to your instructions.
(d) give you the names of real estate appraisers, mortgage brokers, lawyers, surveyors, building inspectors, lenders, insurance agents, architects, engineers, and other professionals. We will not recommend any specific service provider.

6. THE DESIGNATED AGENT'S FACILITATION SERVICES DON'T INCLUDE

6.1 The designated agent will not:
(a) for the tenant:
(i) carry out or influence an independent inspection of the property.
(ii) arrange an independent inspection of the property, unless the tenant instructs them.
(iii) make sure the landlord's information or statements about the property are accurate or complete.
(b) for the landlord:
(i) carry out or influence an independent inquiry into the tenant's financial status.
(ii) make sure the tenant's financial information is accurate or complete.

7. OUR FEE

7.1 You both pay fees according to your representation agreements with us.

8. OTHER DETAILS ABOUT THIS AGREEMENT

8.1 Anything we or the designated agent knows about either of you will not be attributed to the other.
8.2 Neither of you will be liable to the other for anything we or the designated agent do.
8.3 Any future changes to this agreement must be in writing and signed by all of us to be effective.
8.4 Words with a singular meaning may be read as plural when required by the context.
8.5 If any clauses added to this agreement conflict with standard clauses in this agreement, the added clauses apply.
8.6 Except for the representation agreements you both have with us, this agreement is the entire agreement between us and each of you. Anything we discussed with you, or that you told us, is not part of this agreement unless it is in this agreement.
8.7 You each acknowledge that:
(a) you have read this agreement.
(b) you had the opportunity to get independent advice from a lawyer, tax adviser, lender, appraiser, surveyor, structural engineer, property inspector or such other professional service provider as you require before signing this agreement.
(c) this agreement accurately sets out what we and you agree to.

9. CONTACT INFORMATION

9.1 The following contact information must be used for all written communications between us and you. If this contact information changes, we and you must tell each other in writing within two days of the change.

LANDLORD:

Name _____ Name _____
Address _____ (postal code) Address _____ (postal code)
Phone _____ Fax _____ Phone _____ Fax _____
Email _____ Email _____

TENANT:

Name _____ Name _____
Address _____ (postal code) Address _____ (postal code)
Phone _____ Fax _____ Phone _____ Fax _____
Email _____ Email _____

BROKERAGE:

Name _____
Address _____ (Postal Code)
Phone _____ Fax _____
Email _____

BROKERAGE REPRESENTATIVE:

Name _____
Address: c/o the Brokerage
Phone _____ Fax _____
Email _____

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9.2 We and you may communicate and deliver documents and information to each other in person, by mail, or electronically. We and you acknowledge there are risks with each of these methods and we have explained these risks to you.

9.3 We and you agree that for our communication an electronic signature will have the same function as an ink signature and that any documents or information exchanged between us will be considered delivered when they are sent.

SIGNATURES:

SIGNED AND DATED on _____ ____, 20____.

Signature of Landlord	Signature of Tenant
Print Name of Landlord	Print Name of Tenant
Signature of Witness	Signature of Witness
Print Name of Witness	Print Name of Witness
Signature of Landlord	Signature of Tenant
Print Name of Landlord	Print Name of Tenant
Signature of Witness	Signature of Witness
Print Name of Witness	Print Name of Witness
Signature of Brokerage Representative	Print Name of Brokerage Representative

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